

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
DANIEL ALI, AND JAHAIRA RAMIREZ,SUMMONS

Plaintiffs,

Index No.

-against-

Purchased:

CITY OF NEW YORK, DAGOBERTO RODRIGUEZ,
AND JOHN OR JANE DOE 1-10,Plaintiff selects New York County as
the place of trialDefendants.
-----XThe basis of venue is where the injury
occurred**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 10, 2022SIM & DEPAOLA, LLP

By: ATAUR RAQUIB, ESQ.

Attorneys for Plaintiff(s)

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TO: **CORPORATION COUNSEL OF THE CITY OF NEW YORK**
100 Church Street
New York, New York 10007

DAGOBERTO RODRIGUEZ
Tax Reg. 944944, Shield No. 2631
c/o NYPD 34th Precinct
4295 Broadway
New York, New York 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DANIEL ALI, AND JAHAIIRA RAMIREZ

Plaintiffs,

VERIFIED COMPLAINT

-against-

Index No.

CITY OF NEW YORK, DAGOBERTO RODRIGUEZ,
AND JOHN OR JANE DOE 1-10,

Defendants.

-----X
Plaintiffs, **DANIEL ALI** and **JAHAIIRA RAMIREZ**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, for his complaint against the Defendants, **CITY OF NEW YORK, DAGOBERTO RODRIGUEZ** and **JOHN OR JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which plaintiffs seeks relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of their civil rights, as guaranteed and protected by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.
2. The following claims arise from a January 6, 2020 incident, in which defendants, acting under color of state law, unlawfully stopped, questioned, searched, arrested and detained plaintiffs in the vicinity of inside the building at 211 West 101st Street, New York, New York. Plaintiff Daniel Ali was subsequently removed against his will to a hospital and then a precinct where he was released without charges. Plaintiff Jahaira Ramirez was subsequently removed to a hospital against her will and then later released. As a result, Plaintiffs were deprived of their liberty and

suffered various physical, emotional and psychological injuries. Plaintiffs were wrongfully detained over the course of one (1) day.

3. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Plaintiff has served a notice of claim upon the City of New York in compliance with Section fifty-e of the New York General Municipal Law (GML § 50-e).

5. At least thirty (30) days have elapsed since the service of said notice, and adjustment or payment thereof has been neglected or refused.

6. Plaintiff has complied with the municipal defendant's demand for an examination, pursuant to GML § 50-h, or said demand was untimely made.

7. This action and associated claims have been timely commenced within one-year-and-ninety-days after the occurrences upon which they are based and upon availing Executive Order 202.8 *et seq.* issued by former Governor Andrew Cuomo in response ongoing COVID-19 pandemic that tolled the statute of limitations for the period from March 20, 2020, to November 4, 2020.

8. Plaintiff seeks monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

9. Plaintiff, Mr. Daniel Ali ("Mr. Ali"), is an African American Male, who presently resides in Bronx, New York.

10. Plaintiff, Ms. Jahaira Ramirez (“Ms. Ramirez”), is a Hispanic Female, who presently resides in Manhattan, New York.

11. Defendant, City of New York (“City”), is a municipal corporation organized under the laws of the State of New York.

12. At all times relevant hereto, defendant City, acting through the New York City Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD defendants herein.

13. In addition, at all times here relevant, defendant, City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

14. At all relevant times herein, Defendant DAGOBERTO RODRIGUEZ (“RODRIGUEZ”) was a police officer, detective, supervisors, or policy maker employed by the NYPD, under Tax Id. No. 944944 and Shield No. 2631. Defendant RODRIGUEZ is currently assigned to the 34th Precinct. Defendant RODRIGUEZ is being sued in his individual and official capacities.

15. At all relevant times herein, defendants John or Jane Doe 1-10 were police officers, detectives, sergeants, supervisors, policymakers or officials employed by the NYPD or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of defendants, John or Jane Doe 1 through 10, as such knowledge is within the exclusive possession of defendants.

16. At all relevant times herein, defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.

17. At all relevant times herein, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

18. On January 6, 2020, at approximately 3:00 p.m., in the vicinity the building at 211 West 101st Street, New York, New York within the County of New York, City and State of New York, Plaintiffs were illegally stopped, seized and searched, detained, and arrested, by defendants, including RODRIGUEZ and John or Jane Doe 1-10.

19. On said date, time, and location of the incident in question, Plaintiffs were lawfully present inside their apartment on the seventh floor.

20. Ms. Ramirez was just returning from a GED class and Mr. Ali had just returned from complaining to the building staff about a roach infestation in his apartment.

21. Defendants, including RODRIGUEZ and John Doe 2-3, knocked on the door and demanded to speak to Mr. Ali.

22. Defendants, including RODRIGUEZ and John Doe 2-3, then illegally stopped, seized, and detained Plaintiffs without any probable cause or justification whatsoever.

23. Plaintiff Ali communicated to defendants, including RODRIGUEZ and John Doe 2-3, about his bipolar disorder and that the previous conversation with building staff coupled with defendant's illegal questioning was causing him mental anguish and aggravating his condition.

24. Defendants, including RODRIGUEZ and John Doe 2-3, then proceeded to crowd and aggressively approach Mr. Ali, causing him to fear for his safety and exacerbate his mental anguish.

25. Defendants, without any indication of the commission of a crime or unlawful activity whatsoever, then proceeded to place their hands on Mr. Ali in an aggressive manner and violently twisted and contorted his arms behind his back, causing him significant pain and discomfort.

26. Plaintiffs complained and questioned defendants, including RODRIGUEZ and John Doe 2-3 why Mr. Ali was being cuffed and taken into custody and that his cuffs were placed on too tight.

27. Defendants, including RODRIGUEZ and John Doe 2-3, either ignored or outright refused to comply Plaintiffs' requests and further aggressively handled Mr. Ali, aggravating the substantial pain and mental anguish he was suffering from.

28. Defendants, including John or Jane Doe 4-10 then appeared on scene at said location and date of the incident to assist with the illegal arrest and detainment of Plaintiffs.

29. Defendants, including RODRIGUEZ and John Doe 2-3, then moved Mr. Ali to the elevator while Ms. Ramirez attempted to follow with her child by her side.

30. Defendant John Doe 2, as Ms. Ramirez attempted to enter the elevator with her son, then pushed Ms. Ramirez and her child to the ground with severe disregard for their safety.

31. Defendants, including RODRIGUEZ and John or Jane Doe 1-10, then forcibly removed Mr. Ali into the lobby of the building at 211 West 101st Street, slamming him into walls and increasing the aggression in the manner of their detainment, causing Mr. Ali more injuries.

32. Defendants, including RODRIGUEZ and John or Jane Doe 1-10, then continued to forcibly remove Mr. Ali to the outside of the building at 211 West 101st Street, and while he was cuffed,

said defendants continued to apply pressure on his arms and wrists, causing Mr. Ali more substantial pain and mental anguish.

33. Ms. Ramirez attempted to follow Mr. Ali while legally recording with her phone but defendants, including John Doe 4 and Jane Doe 5, then pushed her to the ground and punched her in the left side of the face.

34. Defendants, including RODRIGUEZ and John or Jane Doe 1-10, then violently grabbed Ms. Ramirez's wrists and violently contorted them and placed handcuffs behind her back as she laid on the sidewalk, causing her substantial pain and discomfort.

35. Defendants, including RODRIGUEZ and John or Jane Doe 1-10, then ignored or outright refused Ms. Ramirez's complaints about pain to her wrists and her requests for them to loosen them.

36. Defendants, including RODRIGUEZ and John or Jane Doe 1-10, then transported Mr. Ali to Mount Sinai hospital where he was treated for his physical and emotional distress and then released from custody without any charges.

37. As a result, Mr. Ali was caused substantial pain, severe emotional distress, shock, humiliation, injuries to his wrists, shoulders, the removal of his left thumbnail, and was in whole, caused to be illegally detained for a period of five (5) hours.

38. Defendants, including RODRIGUEZ and John or Jane Doe 1-10, then transported Ms. Ramirez to 34th NYPD Precinct where she was patted down and searched outside and then transported to Mount Sinai Hospital where she was treated for injuries and emotional distress and then released without any charges.

39. As a result, Ms. Ramirez was caused pain and discomfort in her wrists, severe emotional distress, shock, humiliation, and was in whole, cased to be illegally detained for a period of two (2) hours.

40. Due to the lack of probable cause for the seizure of Plaintiffs' persons, the aforementioned conduct constituted the completed torts of Assault and Battery by defendants.

41. Defendants, including RODRIGUEZ and John or Jane Doe 1-10, arrested and attempted to cause a criminal prosecution to be initiated against plaintiff, because of their desires to use plaintiff's arrest and criminal prosecution to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas, and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

42. Defendants, including RODRIGUEZ and John or Jane Doe 1-10, illegally arrested, applied excessive force and attempted to a malicious prosecution against plaintiff in retaliation for plaintiff's exertion of his constitutional right to freely express his opinion and inquiries, namely plaintiff's displeasure with the manner in which defendants addressed him and his polite request for an explanation as to why defendants acted so discourteously toward plaintiff.

43. Defendants, including RODRIGUEZ and John or Jane Doe 1-10, unlawfully targeted and decided to stop and effect unlawful seizures of plaintiffs due to solely to their statuses as an African American Male and a Hispanic female.

44. Defendants, including RODRIGUEZ and John or Jane Doe 1-10, engaged in a conspiracy to falsely arrest and attempted to maliciously prosecute plaintiff by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and

observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

45. Plaintiffs assert that the Defendants, including RODRIGUEZ and John or Jane Doe 1-10, who violated plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

46. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

47. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the

NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

48. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain system in throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

49. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

50. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled "Ex-Cop Details NYPD

‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

51. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

52. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

53. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently

disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

54. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

55. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came from the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

56. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by

the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

57. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff’s arrest without probable cause.

58. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

59. Defendants’ actions, pursuant to plaintiffs’ underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiff’s civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

60. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective

policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.

61. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.

62. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including RODRIGUEZ and John or Jane Doe 1-10.

63. Upon information and belief, the individually named defendants have combined to be named as defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

64. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

65. The aforementioned acts of Defendants, including RODRIGUEZ and John or Jane Doe 1-10, directly or proximately resulted in the deprivation or violation of plaintiffs' civil rights, as guaranteed and protected by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

66. As a direct or proximate result of said acts, plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, substantial physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Free Speech Retaliation Claim Under
New York State Law

67. The above paragraphs are here incorporated by reference as though fully set forth herein.

68. Plaintiffs engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.

69. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiffs' constitutionally protected speech or activities.

70. Defendants' retaliatory actions against plaintiffs resulted in the deprivation of their liberty and the initiation of criminal charges against them.

71. Defendants' retaliatory actions adversely affected plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or

activities or by chilling their desire to further participate or engage in such protected speech or activities.

72. Accordingly, plaintiffs' rights to engage in protected speech and activities, guaranteed and protected by Article I, Section 8, of the New York State Constitution, was violated by defendants.

73. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

74. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under 42 U.S.C. § 1983 Against Individual Defendants

75. The above paragraphs are here incorporated by reference as though fully set forth herein.

76. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

77. Defendants committed impermissible or unlawful actions against plaintiffs that were motivated or substantially caused by plaintiffs' constitutionally protected speech or activities.

78. Defendants' retaliatory actions against plaintiffs resulted in the deprivation of their liberty and the initiation of criminal charges against them.

79. Defendants' retaliatory actions adversely affected plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities, or by chilling their desire to further participate or engage in such protected speech or activities.

80. Accordingly, plaintiffs' right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by defendants.

81. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged

THIRD CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

82. The above paragraphs are here incorporated by reference as though fully set forth herein.

83. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

84. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their person and property.

85. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or properties.

86. The unreasonable searches and seizures to plaintiffs' persons and property were not otherwise privileged.

87. Accordingly, defendants violated plaintiffs' right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.

88. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

89. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

90. The above paragraphs are here incorporated by reference as though fully set forth herein.
91. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
92. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and properties.
93. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or properties.
94. The unreasonable searches and seizures to plaintiffs' persons and properties were not otherwise privileged.
95. Accordingly, defendants violated plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.
96. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

97. The above paragraphs are here incorporated by reference as though fully set forth herein.
98. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.
99. Plaintiffs were conscious of their confinement.
100. Plaintiffs did not consent to their confinement.
101. Plaintiffs' arrest and false imprisonment was not otherwise privileged.

102. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

103. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

104. The above paragraphs are here incorporated by reference as though fully set forth herein.

105. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

106. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

107. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

109. The above paragraphs are here incorporated by reference as though fully set forth herein.

110. At all relevant times, Defendants caused Plaintiffs to fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

111. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without his consent or justification.

112. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered damages.

113. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

115. The above paragraphs are here incorporated by reference as though fully set forth herein.

116. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

117. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without his consent.

118. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

119. The above paragraphs are here incorporated by reference as though fully set forth herein.

120. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

121. Accordingly, defendants violated plaintiff's rights, pursuant to the Administrative Code of the City of New York, Section 14-151

122. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

123. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

124. The above paragraphs are here incorporated by reference as though fully set forth herein.

125. Plaintiffs are members of a racial minority and protected class.

126. Defendants discriminated against Plaintiffs on the basis of his race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation

127. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

128. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

129. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

130. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

131. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

132. Accordingly, defendants violated plaintiff's rights, pursuant to Article I, Section 11, of the New York State Constitution, Article VII, Section 79-N, of the New York Civil Rights Law and Section 296, Paragraph 13, of the New York Human Rights Law.

133. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

134. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

135. The above paragraphs are here incorporated by reference as though fully set forth herein.

136. Plaintiffs are members of a racial minority and protected class.

137. Defendants discriminated against Plaintiffs on the basis of his race, color or ethnicity

138. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.

139. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

140. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

141. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.

142. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

143. Accordingly, defendants violated plaintiffs' rights, under the Fourteenth Amendment.

144. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

145. The above paragraphs are here incorporated by reference as though fully set forth herein.

146. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

147. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

148. As a result, Plaintiffs sustained injuries to their person, were deprived of their liberty or were deprived of rights or privileges of citizens of the United States.

149. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

150. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

151. Accordingly, defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

152. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

153. The above paragraphs are here incorporated by reference as though fully set forth herein.

154. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

155. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

156. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

157. The above paragraphs are here incorporated by reference as though fully set forth herein.

158. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

159. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

160. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

161. The above paragraphs are here incorporated by reference as though fully set forth.

162. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

163. Defendant City breached those duties of care.

164. Defendant City placed defendants in a position where they could inflict foreseeable harm.

165. Defendant City knew or should have known of its employees' propensity for committing civil rights violations.

166. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.

167. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

168. The above paragraphs are here incorporated by reference as though fully set forth.

169. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiffs, to such violative behavior.

170. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

171. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

172. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and

equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

173. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

174. Defendant City's conduct caused plaintiff to be deprived of their civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

175. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- r) Awarding Plaintiff reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
January 10, 2022

SIM & DEPAOLA, LLP

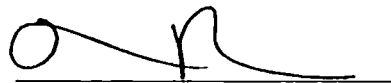
A handwritten signature in black ink, appearing to read 'Ataur Raquib', is written over a horizontal line.

By: Ataur Raquib, Esq.
Attorneys for Plaintiff
42-40 Bell Blvd., Ste 405
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, Ataur Raquib, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 10, 2022


Ataur Raquib, Esq.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DANIEL ALI, AND JAHAIRA RAMIREZ

Plaintiff,

-against-

CITY OF NEW YORK, DAGOBERTO RODRIGUEZ, AND JOHN OR JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

Attorneys for Plaintiff(s)

42-40 Bell Boulevard

Suite 405

Bayside, New York 11361

Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for